

Safety at work: For employers

Before ICE visits:

- Understand and comply with Assembly Bill 450 (Immigrant Worker Protection Act): do not allow ICE agents into non-public areas without a valid judicial warrant
- Ensure employees are notified within 72 hours of receiving Notice of any I-9 inspections
- Maintain strict confidentiality regarding workers' immigration status and documentation
- Train HR, managers, and supervisors on immigrant worker rights and anti-discrimination laws relevant to ICE
- Develop and communicate a clear workplace policy regarding ICE visits, including who is authorized to respond
- Maintain updated contact information for legal counsel experienced in immigration and labor law
- Partner with trusted community organizations to provide resources and support for immigrant employees

When ICE visits:

- Ask ICE agents to show a valid judicial warrant signed by a judge before allowing entry to private areas
- Do not provide ICE agents with employee records or allow inspections without proper legal authorization
- Refrain from any action that could be seen as discrimination, retaliation, or intimidation based on immigration status
- Protect employees' rights to remain silent and their right to legal representation during ICE interactions
- Designate at least one staff member to accompany each agent during the search
- Designate a staff member to observe and document the event, including agents' names, badge numbers, and actions
- Do not physically interfere with any law enforcement officer, but ensure that all actions by ICE comply with legal requirements
- Avoid sharing any immigration status information with ICE without proper authorization

If an employee is detained:

- Document the detention. Record the employee's name, the date and time of detention, the agency involved, and, if available, the name and contact information of the supervising agent. Note whether the employee was removed from the workplace or detained on-site
- Ensure that the employee is paid all wages owed for work performed up to the time of detention
- Designate someone to serve as a point of contact for the employee's family or emergency contacts, consistent with company policy and privacy laws. This should be someone in HR or management who has received some training on these issues
- Address benefits and job-status issues carefully. Detention does not automatically constitute a voluntary resignation or "job abandonment"

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After ICE visits:

- Maintain confidentiality of any information obtained during the event
- Thoroughly investigate any reports of retaliation, discrimination, or workplace disruption linked to the ICE visit
- Provide support and information to employees about their rights and resources
- Cooperate with any lawful labor investigations if workplace violations are reported in connection with ICE activity
- Review and update workplace policies and training materials regularly to ensure compliance with immigration and labor laws
- Establish channels for employees to report concerns or retaliation safely and confidentially
- Document all ICE-related incidents and employer responses to protect against legal risks